

37. Which one of the following is not correctly matched?

Parts of the Constitution	-	Subject
(a) Part II	-	Citizenship
(b) Part III	-	Fundamental Rights
(c) Part IV	-	Directive Principles of State Policy
(d) Part V	-	Fundamental Duties

U.P. Lower Sub. (Pre) 2009

Ans. (d)

Fundamental Duties were added in Part IV-A by the 42nd Amendment of the Indian Constitution, and Part V pertains to the Union Executive.

38. “To uphold and protect the Sovereignty, Unity and Integrity of India” is a provision made in the –

- (a) Preamble of the Constitution
- (b) Directive Principles of State Policy
- (c) Fundamental Rights
- (d) Fundamental Duties

I.A.S. (Pre) 2015

Ans. (d)

Part IV-A of the Constitution deals with the fundamental duties. Originally, the Constitution of India did not contain these duties. Fundamental duties were added by 42nd and 86th Constitutional Amendment Acts. At present, there are 11 fundamental duties. Citizens are morally obligated by the Constitution to perform these duties. Under Article 51A(c), It shall be the duty of every citizen of India to uphold and protect the sovereignty, unity and integrity of India.

39. How many Fundamental Duties are there in the Indian Constitution?

- (a) Nine
- (b) Eleven
- (c) Twelve
- (d) Twenty

U.P.P.C.S. (Mains) 2014

U.P.R.O./A.R.O. (Mains) 2014

Ans. (b)

There are eleven fundamental duties in Part IV-A of the Indian Constitution. Originally there were 10 fundamental duties, but the 11th duty was added by the 86th Amendment Act, 2002. Article 51 A (k) was added for parents or guardians to provide an opportunity for education to their children between the Age of 6 to 14 years.

40. Match List-I with List-II and select the correct answer from the codes given below the lists :

List-I (Subjects)	List-II (Related Articles of Indian Constitution)
A. To foster respect for international law	1. Article 51-A (h)
B. To have compassion for living creatures	2. Article 51 (c)
C. To develop spirit of inquiry and reform	3. Article 50
D. To separate judiciary from the executive in Public Service of the State	4. Article 51A (g)

Codes :

A	B	C	D
(a) 1	2	3	4
(b) 2	4	1	3
(c) 4	3	2	1
(d) 3	1	4	2

U.P. B.E.O. (Pre) 2019

Ans. (b)

The correctly matched articles are as follows :

List-I (Subjects)	List-II (Related Articles of Indian Constitution)
A. To foster respect for international law	1. Article 51 (c)
B. To have compassion for living creatures	2. Article 51 A (g)
C. To develop spirit of inquiry and reform	3. Article 51 A (h)
D. To separate judiciary from the executive in Public Service of the State	4. Article 50

The President

*The President of India is the head of the Indian State, the first citizen, and acts as the symbol of unity, integrity and solidarity of the nation. *According to **Article 52**, ‘There shall be a **President of India**’. *According to **Article 53**, the executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution. *According to **Article 54**, the President shall be elected by the members of

an electoral college consisting of elected members of both Houses of Parliament and elected members of the Legislative Assembly of the States. ***70th Amendment Act, 1992** (effective from 01-06-1995) provided for the inclusion of the members of legislative assemblies of the National Capital Territory of Delhi and the Union territory of Puducherry in the **electoral college** for the election of the President. ***Nominated members and members of Legislative Councils** do not participate in the election of the President. ***According to Article 55(3)**, The election is held in accordance with the system of **proportional representation** by means of the **single transferable vote** and the voting is done by secret ballot. ***All doubts and disputes** in connection with the election of the President are enquired into and decided by the Supreme Court, whose decision is final. ***The Election of the President cannot be challenged** on the grounds that the electoral college was incomplete. ***Article 58** describes the eligibility criteria (**a citizen of India, has completed the age of 35 years and is qualified for election as a member of the House of the People**) for election as President. ***Further, the nomination of a candidate for election to the office of President must be subscribed by at least 50 electors as proposers and 50 electors as seconders. *Every candidate has to make a security deposit of Rs. 15000.** The security deposit is liable to be forfeited in case the candidates fail to secure one – sixth of the votes polled. ***The President's term of office is five years** from the date on which he enters his office (Article 56). ***According to Article 56 (1)(a)**, the President submits his resignation in writing under his hand addressed to the Vice **President of India**. The Vice-President shall immediately inform, about the resignation, to the speaker of the Lok Sabha (Under Article 56(2)). ***Further under Article 56(1)(b)** he can also be **removed from the office by the process of Impeachment** (mentioned under Article 61) ***The Article 57** defines the eligibility of re-election, to the post of the President, for a person. The only ground for impeachment specified in the Art. 61(1) is the violation of the Constitution. ***No President has so far been impeached. *When a vacancy occurs in the office of the President due to his resignation, removal, death or otherwise, the Vice-President acts as the President until a new President is elected. *Further, when the sitting President is unable to discharge his functions due to absence, illness or any other cause, the Vice-President discharges his functions until the President resumes his office. *In case the office of the Vice-President is vacant, the Chief Justice of India (or if his office is also vacant the senior-most judge of the Supreme Court available) acts as the President or discharges the functions of the President. *According to Article 59(1), if any person who is a member of either House of Parliament or a House of the State legislature is elected as President, he is deemed**

to have vacated his seat in that house on the date on which he enters upon his office as President. ***The oath of office to the President is administered by the Chief Justice of India (Art. 60).** ***Currently, the salary of the President is 5 Lakh per month.** It is paid from the **Consolidated Fund of India**. ***According to Article 77**, the conduct of businesses of the Government of India is formally done in his name.

***He can summon a joint sitting** of both the houses of Parliament (Art.108). ***When a bill is sent to the President after it has been passed by the Parliament, he can give his assent to the bill or withhold his assent to the bill, or return the bill (if it is not a money bill) for reconsideration of the Parliament.** However, if the bill is passed again by the Parliament, with or without amendments, the President has to give his assent to the bill. ***A bill becomes an Act** after the assent of the President.

***The President cannot return a money bill for reconsideration.**

***Money bill** is introduced in the Parliament that to in Lok Sabha only with his prior recommendation. ***He can promulgate ordinances** when the Parliament is not in Session (Art.123).

***These ordinances must be approved by the Parliament within six weeks** from its reassembly. ***He can also withdraw an ordinance at any time. *Article 72** of the Constitution empowers the President to grant pardons to persons and to suspend, remit, respite, reprieve or commute sentences in certain cases. ***He has the power to consult the Supreme Court** (Art. 143). ***He can declare any area as a scheduled area and has powers with respect to the administration of scheduled areas and tribal areas. He is the supreme commander of defence forces (Army, Navy and Airforce) of India. *The 42nd Amendment Act, 1976 made a provision that made the President bound by the advice of the Council of Ministers headed by the Prime Minister. *The 44th Amendment Act, 1978** (enacted by Janta Party Government) authorized the President to enquire the Council of Ministers to reconsider such advice either generally or otherwise. However, he shall act in accordance with the advice tendered after such reconsideration.

1. Who amongst the following is the head of Indian Republic?

- (a) President of India
- (b) Prime Minister of India
- (c) Cabinet
- (d) Political head along with the Council of Ministers

U.P.R.O./A.R.O. (Mains) 2013

Ans. (a)

According to Article 53 (1) the executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with the Constitution.

The Presidents of India			
Name	Tenure	Tenure Wise Order	Individual Order
Dr. Rajendra Prasad	26 Jan. 1950– 13 May 1962	1-3	1
Dr. Sarvepalli Radhakrishnan	13 May 1962– 13 May 1967	4	2
Dr. Zakir Hussain	13 May 1967 –3 May 1969 (died)	5	3
Varahagiri Venkata Giri (Acting)	3 May 1969 –20 July 1969	-	-
Justice Mohammad Hidayatullah (Acting)	20 July 1969 –24 Aug. 1969	-	-
Varahagiri Venkata Giri	24 Aug. 1969 –24 Aug. 1974	6	4
Fakhruddin Ali Ahmed	24 Aug. 1974 –11 Feb. 1977 (died)	7	5
B.D. Jatti (Acting)	11 Feb. 1977– 25 July 1977	-	-
Neelam Sanjiva Reddy	25 July 1977 –25 July 1982	8	6
Giani Zail Singh	25 July 1982 –25 July 1987	9	7
R. Venkatraman	25 July 1987 –25 July 1992	10	8
Dr. Shankar Dayal Sharma	25 July 1992 –25 July 1997	11	9
Dr. K.R. Narayanan	25 July 1997 –25 July 2002	12	10
Dr. A.P.J. Abdul Kalam	25 July 2002 –25 July 2007	13	11
Prathiba Devi Singh Patil	25 July 2007 –25 July 2012	14	12
Pranab Mukherjee	25 July 2012 –25 July 2017	15	13
Ram Nath Kovind	25 July 2017 –25 July 2022	16	14
Droupadi Murmu	25 July 2022 –Incumbent	17	15

2. According to the Constitution of India, who among the following is the Head of the State?

- (a) Prime Minister (b) President
(c) Home Minister (d) Vice-President

Uttarakhand P.C.S. (Pre) 2024

Ans. (b)

See the explanation of the above question.

3. Consider the following statements-

Assertion (A) : President of India is different from the British King.

Reason (R) : Office of Indian President is similar to that of America.

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
(b) Both (A) and (R) are true but (R) is not the correct explanation of (A).
(c) (A) is true but (R) is false.
(d) (A) is false but (R) is true.

U.P. Lower Sub. (Pre.) 1998

Ans. (c)

The President of India is indirectly elected whereas the British King is hereditary. The U.S. President has more power than the Indian President, so they are not similar. Thus option (c) is the correct answer.

4. Given below are two statements:

Assertion (A) : The Union Executive is headed by the President of India.

Reason (R) : There is no limitation on the power of the President.

In the context of the above which of the following is correct?

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
(b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
(c) (A) is true, but (R) is false.
(d) (A) is false, but (R) is true.

U.P.P.C.S. (Mains) 2012

Ans. (c)

According to Article 53 of the Constitution, the Executive power of the Union shall be vested in the President, so Assertion (A) is correct whereas Reason (R) is false because the President shall exercise this power either directly or through officers subordinate to him in accordance with the Constitution of India.

5. President of India exercises his powers

- (a) either directly or through officers subordinate to him
(b) through Ministers
(c) through Prime Minister
(d) through Cabinet
(e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (a)

- (b) Both (A) and (R) are true, but (R) is not a correct explanation of (A).
 (c) (A) is true, but (R) is false.
 (d) (A) is false, but (R) is true.

U.P.P.C.S. (Mains) 2005
U.P.P.C.S. (Mains) 2010

Ans. (c)

According to Article 53(2), the supreme command of the Defence Forces is vested in the President, but the exercise of the power is to be regulated by law. So, Assertion (A) is correct, but (R) is false.

14. "He represents the nation but does not lead the nation"—this dictum applies to whom of the following?

- (a) Speaker of the Lok Sabha
 (b) President
 (c) Prime Minister
 (d) Chief Justice of India

U.P.P.C.S. (Mains) 2007

Ans. (b)

The President of India being the Head of the State represents the nation, but the real executive power is vested in the Prime Minister. It is the Prime Minister who leads the nation.

15. How is the President elected in India?

- (a) Directly
 (b) By Rajya Sabha Members
 (c) By Lok Sabha Members
 (d) By Indirect Election

M.P.P.C.S. (Pre) 1998

Ans. (d)

The President of India is elected by the system of proportional representation by means of the single transferable vote and the voting at such election shall be done by secret ballot. This is an indirect method of election. Article 54 describes the method of election of President. It says -

President shall be elected by the members of an electoral college consisting of

(a) all the elected members of both Houses of Parliament (R.S. + L.S.)

(b) all the elected members of the Legislative Assemblies of the States.

Here "State" involves National Capital Territory Delhi and Union Territory of Puducherry as provided by 70th Amendment Act, 1992.

Pay Attention :- Jammu & Kashmir is not included as of now.

Note : The elected members of the Legislative Assembly of the Union Territory of Jammu and Kashmir are not yet included in the President's electoral college.

16. Assertion (A) : The President of India is elected by indirect election.

Reason (R) : There is a provision of Electoral College consisting of the elected members of

both Houses of Parliament and elected members of the Legislative Assemblies of the States.

In the context of above statements select the correct answer.

- (a) (A) is true, but (R) is false.
 (b) (A) is false, but (R) is true.
 (c) Both (A) and (R) are individually true and (R) is the correct explanation of (A).
 (d) Both (A) and (R) are individually true, but (R) is not the correct explanation of (A).

U.P.P.C.S. (Mains) 2015

Ans. (c)

See the explanation of the above question.

17. In India, the President is elected by

- (a) Direct Election
 (b) Single Transferable Vote System
 (c) Proportional Vote System
 (d) Open Ballot System

41st B.P.S.C. (Pre) 1996

Ans. (b & c)

See the explanation of the above question.

18. The electoral college of President consists of –

1. Elected members of both houses of Parliament
2. Elected members of both houses of State Legislatures.
3. Elected members of the Legislative Assemblies of all states.
4. Elected members of legislative assemblies of Delhi and Pondicherry.

Code :

- (a) 1, 2 and 3 are right (b) 1 and 3 are right
 (c) 1, 2, 4 are right (d) 1, 3, 4 are right.

U.P.U.D.A./L.D.A. (Pre) 2001

Ans. (d)

See the explanation of the above question.

19. The Electoral College for the election of the President consists of :

- (a) Members of both houses of parliament
 (b) Members of both houses of Parliament and State Assemblies
 (c) Elected members of both houses of Parliament and elected members of State Assemblies
 (d) None of the above

M.P. P.C.S. (Pre) 2023

Ans. (c)

See the explanation of the above question.

20. The two Union Territories which have been given right to take part in the election of the President of India by the 70th Amendment of Indian Constitution, are :

- (a) Delhi and Chandigarh
- (b) Delhi and Puducherry
- (c) Delhi and Daman & Diu
- (d) Chandigarh and Puducherry

U.P. R.O./A.R.O. (Pre) 2017

Ans. (b)

See the explanation of the above question.

21. Who among the following are not included in the Electoral College for the election of the President of India?

- (a) Elected members of the House of the People.
- (b) Elected members of the Council of States.
- (c) Elected member of the Legislative Assemblies of the States.
- (d) Elected members of the Legislative Councils of the States.

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (d)

See the explanation of the above question.

22. Which of the following are the members of the electoral college for electing the President of India?

Select the correct answer from the code given below:

- 1. All the members of the two Houses of Parliament.
- 2. All the elected members of the State Legislative Assemblies.
- 3. All the elected members of the U.T. Assemblies
- 4. All the Governors and Lt. Governors

Code :

- (a) 1 and 2 only
- (b) 2 and 3 only
- (c) 1, 2 and 3 only
- (d) 1, 2, 3 and 4

U.P.P.C.S. (Mains) 2012

Ans. (*)

See the explanation of the above question.

23. Electoral College for the election of the President of India consists of -

- (a) All the elected members of the Rajya Sabha.
- (b) All the elected members of the Lok Sabha
- (c) All the members of the State Legislative Assemblies.
- (d) All the elected members of both the Houses of Parliament and elected members of the State Legislative Assemblies.
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (d)

See the explanation of the above question.

24. The members of board of election of the President of India are—

- 1. Elected members of Lok Sabha
- 2. Elected members of Rajya Sabha
- 3. Elected members of Vidhan Sabha
- 4. Elected members of Vidhan Parishad

Code :

- (a) 1 and 2
- (b) 1 and 3
- (c) 1, 2 and 3
- (d) 1, 3 and 4

U.P.P.C.S. (Pre) 1993

Ans. (c)

See the explanation of the above question.

25. The President of India is elected by-

- (a) Only the members of Rajya Sabha
- (b) Only the members of Lok Sabha
- (c) Only by the Members of State Legislative Assemblies and Lok Sabha
- (d) By the Elected Members of Rajya Sabha Lok Sabha and State Legislative Assemblies.

U.P.P.C.S. (Mains) 2011

Ans. (d)

See the explanation of the above question.

26. President of India is elected by :

- (a) Lok Sabha
- (b) Rajya Sabha
- (c) Parliament Members
- (d) Members of Parliament and Members of State Legislative Assemblies

U.P.P.S.C. (GIC) 2017

Ans. (*)

See the explanation of the above question.

27. Which one of the following is not correct regarding Presidential election?

- (a) Election of the successor must be held before the expiry of the term of the incumbent President
- (b) The President shall hold office for a term of five years from the date on which he enters upon his office.
- (c) On the expiration of his term, he continues to hold office until his successor enters upon his office.
- (d) President's election may be postponed on the ground that the electoral college is incomplete.

U.P.P.C.S. (Mains) 2016

Ans. (d)

The Presidential election can not be postponed on the grounds that the electoral college is incomplete. The Legislative Assembly, which is dissolved, cannot take part in the election. Thus option (d) is not correct while other options are correct with regard to the election of the President.

28. Minimum number of electors needed to be proposer of the presidential candidate is -

- (a) Ten electors (b) Twenty electors
(c) Five electors (d) Fifteen electors

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (*)

For the nomination of a person for the election of the President, minimum 50 electors need to be proposers, and further 50 electors need to be the seconders of the nomination paper.

29. Consider the following statements:

In the electoral college for Presidential Election in India,

- 1. The value of the vote of an elected Member of Legislative Assembly equals State Population divided by Number of elected Member of the state assembly $\times 100$**
- 2. The value of the vote of an elected Member of Parliament equals the total value of the votes of all elected MLAs divided by total number of elected MP's**
- 3. There were more than 5000 voters in the latest elections.**

Which of these statement(s) is/are correct?

- (a) 1 and 2 (b) Only 2
(c) 1 and 3 (d) Only 3

I.A.S. (Pre) 2003

Ans. (b)

According to Article 55 of the Constitution, as far as practicable, there shall be uniformity in the scale of representation of different States in the election of the President.

Every elected Member of Legislative Assembly of a State shall have as many votes as there are multiples of one thousand in the quotient obtained by dividing the population of the State by the total number of the elected members of the assembly.

So, in the above statements only statement 2 is correct, therefore option (b) is correct.

30. With reference to the election of the President of India, consider the following statements :

- 1. The value of the vote of each MLA varies from State to State.**
- 2. The value of the vote of MPs of the Lok Sabha is more than the value of the vote of MPs of the Rajya Sabha.**

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre.) 2018

Ans. (a)

*The Constitution provides that there shall be uniformity in the scale of representation of different states as well as parity between the states as a whole and the Union in the election of the President. Hence it can be expressed as -

(i) Value of the vote of an MLA = Total Population of the State $\div$ Total numbers of elected members in the state legislative assembly $\times 1000$

The vote-value of each MLA varies from the state to state due to the different population of each state and the total number of the elected members. For example, the value of vote of each MLA of the Arunachal Pradesh Legislative Assembly is 8, Whereas the value of vote of each MLA of the Uttar Pradesh Legislative Assembly is 208. Hence, statement (1) is correct. (ii) The following formula is used to calculate the vote value of a member of Parliament -

Sum of vote value of elected members of all state

Legislative Assemblies

Number of elected members of both houses (Lok Sabha + Rajya Sabha) of the Parliament

Therefore, it is clear that the value of each member of the Lok Sabha and each member of the Rajya Sabha is the same. If, the vote value of one member is to be counted, the value of the vote of each member of both houses is the same. Hence statement (2) is wrong.

31. Which of the following statements is incorrect regarding the election of the President of India?

- The President of India is elected by the members of an Electoral College consisting of (a) the elected members of both the Houses of Parliament and (b) the elected members of the Legislative Assemblies of the States and the Union Territories with Legislative Assembly.
- Value of vote for each of the members of the Electoral College is decided based on the population census of 1971 and it will continue to be so till population of the first census taken after the year 2026 have been published.
- The elections are held in accordance with the system of Proportional Representation by means of single transferable vote.
- Every elected member of the Legislative Assembly of a State shall have as many votes as there are multiples of one hundred in the quotient obtained by dividing the population of the State by the total number of the elected members of the Assembly.
- Question not attempted

Raj. P.C.S. (Pre) 2024

Ans. (d)

The Statement (a) is correct according to the Article 54 of the Constitution.

The Statement (b) is correct according to the 84th Constitutional Amendment Act, 2001.

The Statement (c) is correct as per the Article 55.

The Statement (d) is incorrect, because the value of an MLA's vote is determined using the formula :

$$\text{Value of MLA's Vote} = \frac{\text{Population of the State}}{\text{Total Number of elected MLAs of the State}} \times 100$$

32. In the Presidential Election, 2022, the vote value of each member of Rajasthan Legislative Assembly was:

- (a) 14 (b) 112
(c) 12 (d) 11
(e) Question not attempted

Raj. P.C.S. (Pre) 2023

Ans. (c)

The President of India is elected by an electoral college. According to Article 54, the electoral college consists of 1. the elected members of both the Houses of Parliament 2. the elected members of the legislative assemblies of the States and 3. the elected members of the legislative assemblies of the Union Territories of Delhi and Puducherry (added by the 10th Constitutional Amendment Act of 1956). In the Presidential election of 2022, former Jharkhand Governor and National Democratic Alliance candidate K. P. Singh was elected by defeating the opposition's candidate, Kashant Sinha as the 15th President of India. She is also the first tribal woman (who hails from the Santhal tribe) to be elected to the position and the youngest as well.

The Constitution provides that there shall be uniformity in the scale of representation of different States. The Value of the vote of an MLA can be expressed as :

$$\frac{\text{Total population of state}}{\text{Total number of elected members in the state legislative assembly}} \times \frac{1}{1000}$$

Population for this purpose is ascertained from the 1981 census by the 84th Constitutional Amendment Act of 2001. The population of Rajasthan in the year 1981 was 2,50,00,000. This, dividing the total number of 200 MLAs gives the number 1,28,820.00. While dividing this again by 1000, the number comes to 128.82. Thus, the value of the vote of a Rajasthan MLA was fixed at 128.

33. Consider the following statements in respect of election to the President of India :

1. The members nominated to either House of the Parliament or the Legislative Assemblies of States are also eligible to be included in the Electoral College.
2. Higher the number of elective Assembly seats, higher is the value of vote of each MLA of that State.
3. The value of vote of each MLA of Madhya Pradesh is greater than that of Kerala.
4. The value of vote of each MLA of Puducherry is higher than that of Arunachal Pradesh because the ratio of total population to total number of elective seats in Puducherry is greater as compared to Arunachal Pradesh.

How many of the above statements are correct?

- (a) One (b) Two
(c) Three (d) All four

I.A.S. (Pre.) 2023

Ans. (a)

The President is elected not directly by the people but by members of the Electoral College consisting of:

→ the elected members of both the Houses of Parliament

→ the elected members of the legislative assemblies of the states and

→ the elected members of the legislative assemblies of the Union Territories of Delhi and Puducherry (added by the 10th Constitutional Amendment Act of 1956).

Thus, the nominated members of both Houses of Parliament, the nominated members of the state legislative assemblies, the members (both elected and nominated) of the state legislative councils (in case of the bicameral legislature) do not participate in the election of the President. Hence statement 1 is not correct. Article 55 of the Constitution provides the manner of election of the President, according to this Article, value of the vote of an MLA of a state = $\frac{\text{Total population of the state}}{1000 \times \text{total number of elected members in the state legislative assembly}}$. From the equation, it is clear that the higher the number of seats in the legislative assembly the lower the value of the vote of an MLA of that state (as the number of seats forms the denominator). According to the 84th Constitutional Amendment Act of 2001, the expression 'population' means the population as ascertained at the 1981 census, until the relevant figures for the first census taken after 2021 have been published. On the basis of the above formula, the value of a vote of an MLA is given for the following states and union territories: 1. Madhya Pradesh 112, 2. Kerala 152, 3. Arunachal Pradesh 8, 4. Puducherry 11. Hence statement 2 and 3 are incorrect while statement 4 is correct.

34. The Chief Minister of a State in India is not eligible to vote in the Presidential election if-

- (a) He is a candidate
- (b) He is yet to prove his majority on the floor of the Lower House of the State Legislature.
- (c) He is a member of the Upper House of the State Legislature.
- (d) He is a member of the Lower House of the State Legislature.

I.A.S. (Pre) 1993

Ans. (c)

Article 54 provides that the President shall be elected by an electoral college consisting of:

- (a) the elected members of both Houses of Parliament
- (b) the elected members of Legislative Assembly of the States.

Thus, if the Chief Minister of a State is a member of the Upper House of the State (Legislative Council), he is not entitled to vote in the election of the President.

35. In the Presidential election in India, every elected member of the Legislative Assembly of a State shall have as many votes as there are multiples of one thousand in the quotient obtained by dividing the population of the State by the total number of the elected members of the Assembly. As at present (1997), the expression "population" here means the population as ascertained by the

- (a) 1991 Census
- (b) 1981 Census
- (c) 1971 Census
- (d) 1961 Census

I.A.S. (Pre) 1997

Ans. (c)

According to Article 81(3), the expression "population" means the population as ascertained at the last preceding census of which the relevant figures have been published. Provided that the reference in this clause to the last preceding census of which the relevant figures have been published shall, until the relevant figures for the first census taken after the year 2026 have been published, be construed as a reference to the 1971 census. It is also mentioned in the Explanation of Article 55.

36. Which of the following is not an essential qualification for the candidature of President?

- (a) Completion of 35 years
- (b) Educated
- (c) Qualified for election as a member of the House of People
- (d) Citizen of India

U.P.P.C.S. (Pre) 1992

Ans. (b)

Article 58(1) of the Indian Constitution enumerates qualifications for election as President – No person shall be eligible for election as President unless he –

- (a) is a citizen of India
- (b) has completed the age of 35 years and
- (c) is qualified for election as a member of the House of the People.

37. Consider the following statements about the President of India-

- (1) He should be citizen of India by birth
- (2) He should have completed the age of 35 years
- (3) He should be qualified for election as a member of Parliament

Which of these statement is/are correct –

- (a) Only 1
- (b) Only 2
- (c) 1 and 2
- (d) 1 and 3

U.P. Lower Sub. (Pre) 1998

Ans. (b)

Article 58(1) of the Indian Constitution describes the qualification for the election of President. According to Article 58 (1) No person shall be eligible for election as President unless he-

- (a) is a citizen of India
- (b) has completed the age of 35 years
- (c) is qualified for election as a member of the House of the People (Lok Sabha).

So, it is clear that citizenship by birth is not required and the candidate must be eligible for the House of the people only.

38. A Member of Parliament or a State Legislature can be elected as President but

- (a) He will have to resign from his seat before contesting the election
- (b) He will have to relinquish his seat within 6 months of his election
- (c) He will have to relinquish his seat as soon as he is elected
- (d) An MP can contest but an MLA can not.

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (c)

According to Article 59(1) of the Indian Constitution, the President shall not be a member of either House of Parliament or of a House of the Legislature of any State, and if a member of either House of Parliament or of a House of the Legislature of any State is elected President, he shall be deemed to have vacated his seat in that House on the date on which he enters upon his office as President.

39. The Indian President is eligible for re-election for how many times?

- (a) Once
- (b) Twice
- (c) Thrice
- (d) Any number of times
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre) (Re- Exam), 2021

Ans. (d)

Article 57 of the Constitution of India deals with the eligibility for re-election of the President, according to which any person who holds or has held office as President shall, subject to the other provisions of this constitution, be eligible for re-election to that office. Thus the President of India is eligible for re-election any number of times.

40. Which article of the Indian Constitution prescribes eligibility conditions for re-election to the post of the President of India?

- (a) Article 52
- (b) Article 54
- (c) Article 55
- (d) Article 57

Chhattisgarh P.C.S. (Pre) 2011

Ans. (d)

Article 57 describes the eligibility for re-election to the post of the President of India. It provides 'A person who holds, or who has held the office of President, shall subject to the other provisions of this Constitution, be eligible for re-election to that office'.

41. If there is any dispute regarding the Presidential election, it can be referred to –

- (a) Attorney General of India
- (b) Parliament
- (c) Supreme Court of India
- (d) None of these

38th B.P.S.C. (Pre) 1992

Ans. (c)

If there is any doubt or dispute regarding the election of the President, it can be referred to the Supreme Court of India (Art 71), whose decision shall be final.

42. Consider the following statements :

1. If the election of the President of India is declared void by the Supreme Court of India, all acts done by him/her in the performance of duties of his/her office of President before the date of decision become invalid.
2. Election for the post of the President of India can be postponed on the ground that some Legislative Assemblies have been dissolved and elections are yet to take place.
3. When a Bill is presented to the President of India, the Constitution prescribes time limits within which he/she has to declare his/her assent.

How many of the above statements are correct?

- (a) Only one
- (b) Only two
- (c) All three
- (d) None

I.A.S. (Pre.) 2023

Ans. (d)

Article 71 of the Indian Constitution provides matters relating to, or connected with, the election of a President or Vice-President. As per Article 71(1), all doubts and disputes arising out of or in connection with the election of a President or Vice-President shall be inquired into and decided by the Supreme Court, whose decision shall be final. Article 71(2) says If the election of a person as President or Vice-President is declared void by the Supreme Court, acts done by him in the exercise and performance of the powers and duties of the office of President or Vice-President, as the case may be, on or before the date of the decision of the Supreme Court shall not be invalidated by reason of that declaration. As per Article 71 (4), the election of a person as President or Vice President shall not be called in question on the ground of the existence of any vacancy for whatever reason among the members of the Electoral College electing him. Thus, postponement is not an option. As regards the Indian President, the Constitution does not prescribe any time-limit within which he has to take the decision with respect to a bill presented to him for his assent. Hence all three statements are incorrect.

43. The President holds office for a term of 5 years from date on –

- (a) Which he/she is elected
- (b) Which is decided by Parliament
- (c) Which he enters upon his office/hold his office
- (d) Which is decided by Election Commission

R.A.S./R.T.S (Pre) 1996

Ans. (c)

According to Article 56(1), the President holds office for a term of 5 years from the date on which he enters upon his office.

44. To whom does the President of India address his resignation?

- (a) Speaker of the Lok Sabha
- (b) Vice-President of India
- (c) Chief Justice of India
- (d) Prime Minister of India

I.A.S. (Pre) 2009

Ans. (b)

According to Article 56(1)(a), the President addresses his resignation to the Vice-President of India and then under Article 56(2), the vice-President shall immediately communicate the same to the Speaker of the House of the People [Art 56(2)].

45. To whom does the President of India submit his resignation?

- (a) The Speaker of the Lok Sabha
- (b) The Vice-President of India
- (c) The Chief Justice of India
- (d) The Prime Minister of India

Jharkhand P.C.S. (Pre) 2013

Ans. (b)

See the explanation of the above question.

46. The President of India can be removed from his post by –

- (a) The Prime Minister of India
- (b) Lok Sabha
- (c) Chief Justice of India
- (d) Parliament

39th B.P.S.C. (Pre) 1994

47th B.P.S.C. (Pre) 2005

Ans. (d)

According to Article 56(1)(b), the President can be removed from his/her office by impeachment for the violation of the Constitution, and the process of impeachment can be started by either House of the Parliament in accordance with provisions of Article 61.

47. Impeachment can be imposed on the President of India on which of the following grounds?

- (a) Professional misconduct
- (b) Violation of the Constitution
- (c) Carrying on a vocation of profit
- (d) Mental instability

M.P.P.C.S. (Pre) 2025

Ans. (b)

See the explanation of the above question.

48. What is not true in relation to election of President?

- (a) Provision for process of election of President is described in Article 55 of Indian Constitution
- (b) At nomination stage a candidate has to submit the signed list of 50 proposers and 50 seconders value of votes of members of
- (c) State Legislature is based on the population of respective States and it's based on 1971 Census data
- (d) None of the above

Chhattisgarh P.C.S. (Pre) 2022

Ans. (d)

As per Article 55 of the Constitution of India, the election of the President shall be held in accordance with the system of proportional representation by means of a single transferable vote and the voting at such election shall be done by secret ballot. Hence option (a) is correct.

The nomination of a candidate for election to the office of president must be subscribed by at least 50 electors as proposers and 50 electors as seconders. Hence option (b) is correct. The value of the vote of each MLA (Members of Legislative Assemblies) varies from state to state. It's based on 1971 census data.

Hence all the options (a), (b) and (c) are true. Hence option (d) is correct answer.

49. Under which Article of the Indian Constitution can the President be impeached?

- (a) Article 356
- (b) Article 75
- (c) Article 76
- (d) Article 61

Uttarakhand P.C.S. (Mains) 2006

Ans. (d)

See the explanation of the above question.

50. Under which one of the following Articles, the procedure for removal of the President of India through the process of impeachment has been laid down?

- (a) Article-53
- (b) Article-61
- (c) Article-74
- (d) Article-13

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (b)

See the explanation of the above question.

51. The President of India can be removed from office even before the expiry of the term.

- (a) By the political party in power
- (b) By the Prime Minister
- (c) Through impeachment
- (d) Through trial by court

U.P.P.C.S. (Pre) 1994

Ans. (c)

See the explanation of the above question.

52. By which House of Parliament, impeachment may be imposed on President?

- (a) House of People
- (b) Council of States
- (c) By any House of Parliament
- (d) None of the above

Jharkhand P.C.S. (Pre) 2003

Ans. (c)

See the explanation of the above question.

53. Which among the following Article speaks about impeachment of the President of India?

- (a) Article 63
- (b) Article 62
- (c) Article 61
- (d) Article 60

M.P.P.C.S. (Pre) 2024

Ans. (c)

Procedure for impeachment of the President is provided under Article 61 of the Constitution. According to Article 61(1), the charge for impeachment of President shall be preferred by either House of Parliament. According to the Article 61(3), the other House shall investigate the charge or cause the charge to be investigated and the president shall have the right to appear and to be represented at such investigation.

54. Which Article of the Indian constitution provides the Provisions related to the impeachment of the President?

- (a) Article 53
- (b) Article 73
- (c) Article 61
- (d) Article 72

M.P.P.C.S. (Pre.) 2022

Ans. (c)

Article 61 of the Indian Constitution provides the procedure for impeachment of the President. As per this provision, the President can be removed from office by a process of impeachment (a quasi-judicial procedure in the Parliament) for 'violation of the Constitution'. However, the Constitution does not define the meaning of the phrase "violation of the Constitution". The impeachment charges can be initiated by either House of Parliament after giving a 14 days' Prior-notice to the President. These charges should be signed by one-fourth of the members of the House (that framed the charges). After the impeachment resolution is passed by a majority of two-thirds of the total membership of that House, it is sent to the other House, which should investigate the charges. If the other House also sustains the charges and passes the impeachment resolution by a majority of two-thirds of the total membership, then the President stands removed from his office from the date on which the resolution is so passed. However, no President has so far been impeached.

55. Which one of the following Articles of the Indian Constitution deals with the impeachment process against the Indian President?

- (a) Article 39
- (b) Article 60
- (c) Article 61
- (d) None of the above

U.P. P.C.S. (Mains) 2017

Ans. (c)

See the explanation of the above question.

56. Which one of the following has the power to initiate the Motion of Impeachment of the President of India?

- (a) Both the Houses of the Parliament
- (b) Lok Sabha
- (c) Rajya Sabha
- (d) Speaker of the Lok Sabha

U.P.P.C.S. (Mains) 2007

Ans. (a)

See the explanation of the above question.

57. The President can be impeached on the grounds of violating the Constitution by –

- (a) The Chief Justice of India.
- (b) The Vice-President of India.
- (c) The Speaker of the Lok Sabha.
- (d) The two Houses of Parliament.

U.P.P.C.S. (Mains) 2008

Ans. (d)

See the explanation of the above question.

58. At least how many days of prior notice is required for the impeachment of the President of India?

- (a) 7 days
- (b) 14 days
- (c) 21 days
- (d) 30 days

U.P.P.C.S. (Pre) 2014

Ans. (b)

According to Article 61(1), the process of impeachment can be started from either House of the Parliament, and it is required to give prior notice of at least 14 days [Art. 61(2) (a)] in writing which must be signed by not less than 1/4th of the total number of members of the House, who have given their intention to move the resolution. Under Article 61(2) (b), such a resolution must be passed by a majority of not less than two-thirds of the total membership of the House.

59. Which one of the following is a part of the electoral college of the President but not of the process of impeachment?

- (a) Lok Sabha
- (b) Rajya Sabha
- (c) State Legislative Councils
- (d) State Legislative Assemblies

I.A.S. (Pre) 1996

Ans. (d)

The Members of Lok Sabha and Rajya Sabha can start impeachment of the President of India as mentioned in Art. 61 of the Constitution. Members of State Legislative Assemblies do not participate in the process of impeachment though they take part in the election process of the President. It is known that State Legislative Councils are not part of the electoral college and do not take part in the election of the President. The procedure for Impeachment of the President of India is Quasi-Judicial Procedure.

60. Which one of the following is electoral college for the President but not forum for his impeachment?

- (a) State Legislative Councils
- (b) State Legislative Assemblies
- (c) Rajya Sabha
- (d) Lok Sabha

70th B.P.S.C Re-Exam 2024

Ans. (b)

According to Article 61, the impeachment of the President is a quasi-judicial process that takes place in the Parliament. In this process, the state legislatures do not participate. As per Article 54(b), the elected members of the Legislative Assemblies of the state are part of the electoral college of the president. It is noteworthy that the Legislative Council of the States are not part of the election of the president.

61. The procedure of Impeachment of the President of India is –

- (a) Quasi-Judicial Procedure
- (b) Executive Procedure
- (c) Judicial Procedure
- (d) Legislative Procedure

R.A.S./R.T.S. (Pre) 2016

Ans. (a)

See the explanation of the above question.

62. The vacant post of the President is to be filled within –

- (a) 90 days
- (b) Six months
- (c) Nine months
- (d) One year

U.P.P.C.S. (Pre) 2005

U.P.P.C.S. (Mains) 2013

Ans. (b)

Article 62(2) of the Indian Constitution describes that the vacant post of the President should be filled within six months from the date of occurrence of the vacancy because of his death, resignation or removal, or otherwise.

63. In the case of a vacancy arising from any cause other than the expiry of the term of the President in office an election to fill the vacancy must be held:

- (a) Within six months from the date of occurrence of the vacancy
- (b) After one year from the date of vacancy
- (c) After nine months from the date of vacancy
- (d) After seven months from the date of vacancy

U.P.P.C.S. (Mains) 2016

Ans. (a)

See the explanation of the above question.

64. What is the deadline to fill the occurrence of vacancy due to death, resignation or removal of the President in India?

- (a) One month
- (b) Nine month
- (c) Three months
- (d) Six months

U.P.P.C.S. (Pre) 1998

Ans. (d)

See the explanation of the above question.

65. For how long can the Vice-President act as President when the President cannot perform his duties for reasons of death resignation, removal or otherwise?

- (a) 5 years
- (b) 1½ years
- (c) 1 year
- (d) 6 months

Jharkhand P.C.S. (Pre) 2013

Ans. (d)

In the case of a vacancy for the post of the President, it should not be vacant for more than 6 months. So the Vice-President can hold the office for not more than 6 months.

66. In case the post of the President of India falls vacant due to his death, resignation or removal from office, who will occupy that post?

- (a) Prime Minister
- (b) Chief Justice of the Supreme Court
- (c) Vice-President
- (d) None of the above

M.P.P.C.S. (Pre) 1995

Ans. (c)

Article 65(1) describes that “In the event of the occurrence of any vacancy in the office of the President by reason of his death, resignation or removal, or otherwise, the Vice-President shall act as President until the date on which a new President elected in accordance with the provisions of this Chapter to fill such vacancy enters upon his office”.

67. In case the post of President of India falls vacant, and there is no Vice-President also, who among the following would be the acting President?

- (a) Vice-Chairman of Rajya Sabha
- (b) Attorney-General of India
- (c) Lok Sabha Speaker
- (d) Chief Justice of the Supreme Court

U.P.P.C.S. (Pre) (Re. Exam) 2015

U.P.R.O./A.R.O. (Pre) 2014

R.A.S./R.T.S. (Pre) 2007

U.P.P.C.S. (Mains) 2005

U.P.P.C.S. (Pre) 1992

Ans. (d)

The President (discharge of functions) Act, 1969 of India provides that the Chief Justice of India (CJI) shall act as the President of India in the event of the office of both the President and Vice – President being vacant. In the absence of CJI, the senior-most Judge of the Supreme Court shall perform the functions of the President.

68. In the event of vacancy in the office of both President and Vice President, who shall discharge the functions of President?

- (a) Prime Minister
- (b) Lok Sabha Speaker
- (c) Chief Justice of India
- (d) None of the above

U.P.R.O./A.R.O. (Mains) 2021

Ans. (c)

See the explanation of the above question.

69. If the position of President and Vice-President are vacant, who officiates as the President of India?

- (a) The Prime Minister
- (b) The Chief Justice of India
- (c) The Speaker of Lok-Sabha
- (d) None of these

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (b)

See the explanation of the above question.

70. If in India the office of President and Vice-President falls vacant at one point of time, the office of the President will temporarily be held by –

- (a) The Prime Minister
- (b) The Chief Justice of Supreme Court
- (c) The Chief of Armed Forces
- (d) None of the above

U.P.P.C.S. (Mains) 2014

Ans. (b)

See the explanation of the above question.

71. Assertion (A) : During the term of office no litigation can be instituted in any court of law against the President of India.

Reason (R): President's office is above the Constitution.

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

Chhattisgarh P.C.S. (Pre) 2008

Ans. (*)

As per the Article 361 (2) No criminal proceedings whatsoever shall be instituted or continued against the President or the Governor of a state in any court during his term of office. However, under the provision of **Article 361 (4)** a civil proceeding can be instituted against the president or the Governor of a state during his term of office after two months of giving written notice. So none of the above answer is correct.

72. The President can dissolve Lok Sabha on –

- (a) Recommendation of Chief Justice of India
- (b) Lok Sabha's recommendation
- (c) Recommendation of the Union Cabinet
- (d) Rajya Sabha's recommendation

M.P.P.C.S. (Pre) 1999

Ans. (c)

According to Article 85 (2) (b), the President may dissolve the House of the People (Lok Sabha). But the president in exercise of his functions, acts in accordance with the advice of the Union Council of Ministers headed by the Prime Minister (Under Article 74(1)).

73. The President of India can dissolve the Lok Sabha on the recommendation of:

- (a) Rajya Sabha
- (b) Election Commission
- (c) Chief Justice of India
- (d) Cabinet

Chhattisgarh P.C.S. (Pre) 2003

Ans. (d)

See the explanation of the above question.

74. With reference to the Parliament of India, consider the following statements :

1. Prorogation of a House by the President of India does not require the advice of the Council of Ministers.
2. Prorogation of a House is generally done after the House is adjourned sine die but there is no bar to the President of India prorogating the House which is in session.
3. Dissolution of the Lok Sabha is done by the President of India who, save in exceptional circumstances, does so on the advice of the Council of Ministers.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 1 and 2
- (c) 2 and 3
- (d) 3 only

I.A.S. (Pre) 2024

Ans. (c)

Under Article 85 of the Constitution, the President has the power to summon to meet and prorogue either House of Parliament or to dissolve Lok Sabha. Under Article 85(2)(a), the President may from time to time prorogue Houses or either House of Parliament. Termination of a session of the House by an Order by the President under the above constitutional provision is called 'prorogation'. Prorogation of a House by the President of India requires the advice of the Council of Ministers. Hence, statement 1 is incorrect.

Prorogation normally follows the adjournment of the sitting of the House sine die. The time-lag between the adjournment of the House sine die and its prorogation is generally two to four days, although there are instances when the House was prorogued on the same day on which it was adjourned sine die. There is no bar to the President of India prorogating the House which is in session. Hence, statement 2 is correct.

In terms of Article 83(2) of the Constitution, the House of the People, unless sooner dissolved, shall continue for five years from the date appointed for its first meeting and no longer and the expiration of the said period of five years shall operate as a dissolution of the House. Under Article 85(2)(b), dissolution of the Lok Sabha (before the expiration of its term) is done by the President of India. President, save in exceptional circumstances, does so on the advice of the Council of Ministers. The President may on his discretion, look for alternate government formation if the present government cannot prove a majority in Lok Sabha. Hence, statement 3 is correct.

75. The joint sitting of the House of People and the Council of States is summoned by –

- (a) The President
- (b) Speaker of Lok Sabha
- (c) Parliament
- (d) Chairman of Rajya Sabha

U.P.P.C.S.(Pre) 2012

Ans. (a)

The joint sitting of the House of the People and the Council of States can be summoned by the President in certain cases prescribed in Article 108 of the Constitution. Under Article 118(4), the speaker of the Lok Sabha presides the joint-session of the Parliament.

76. The Joint sitting of Lok Sabha and Rajya Sabha under Article 108 is summoned by –

- (a) Chairman of Rajya Sabha
- (b) Speaker of Lok Sabha

- (c) Prime Minister
- (d) President

U.P.P.C.S. (Mains) 2015
U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (d)

See the explanation of the above question.

77. Who among the following can call the joint session of Indian Parliament?

- (a) President
- (b) Vice-President
- (c) Prime Minister
- (d) Speaker of Lok Sabha

Uttarakhand P.C.S. (Pre) 2003

Ans. (a)

See the explanation of the above question.

78. Which of the following expression is appropriate regarding the message to call joint sitting of both houses under Article 108 of the Constitution of India?

- (a) Intention of President
- (b) Direction of President
- (c) Wisdom of President
- (d) Consent of President

M.P.P.C.S. (Pre) 2020

Ans. (a)

Article 108-Joint sitting of the both Houses in certain cases- If after a Bill has been passed by one House and transmitted to the other House —

- (a) the Bill is rejected by the other House; or
- (b) the Houses have finally disagreed as to the amendments to be made in the Bill; or
- (c) more than six months elapse from the date of the reception of the Bill by the other House without the Bill being passed by it, the President may, unless the Bill has elapsed by reason of a dissolution of the House of the People, notify to the Houses by message if they are sitting or by public notification if they are not sitting, his **intention** to summon them to meet in a joint sitting for the purpose of deliberating and voting on the Bill.

Hence option (a) is correct.

79. Which of the following is required under Article 108 of the Constitution of India to summon a joint sitting of the two houses of Parliament?

- (a) Intention of the President
- (b) Satisfaction of the President
- (c) Instruction of the President
- (d) Consent of the President

M.P.P.C.S. (Pre), 2021

Ans. (a)

See the explanation of the above question.

80. Which one of the following statements about the President of India is not correct?

- (a) He is a constituent part of Parliament.
- (b) He participates in the discussions in the both Houses.
- (c) He addresses the joint meeting of both the Houses every year.
- (d) He can promulgate ordinances in certain situations.

U.P.P.C.S. (Mains) 2010

Ans. (b)

According to Article 79 of the Constitution, the President of India is a constituent part of the Parliament. He addresses the two Houses at a joint meeting every year. He can promulgate Ordinances (according to Article 123) during the recess of Parliament. He does not participate in the Parliamentary discussions.

81. Given below are two statements:

Assertion (A) : The President is the part of the Parliament

Reason (R) : A Bill passed by the two Houses of Parliament cannot become law without the assent of the President

In the context of the above, which one of the following is correct?

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P.P.C.S. (Mains) 2007

U.P.P.C.S. (Pre.) 2023

Ans. (a)

According to Article 79, the Parliament includes the President and both the Houses (Lok Sabha and Rajya Sabha), and under Article 111, a Bill becomes law only when it gets the President's assent. So both (A) and (R) are correct statements and (R) is the correct explanation of (A).

82. A Bill presented in Parliament becomes an Act after –

- (a) It is passed by both the Houses.
- (b) The President has given his Assent.
- (c) The Prime Minister has signed it.
- (d) The Supreme Court has declared it to be within the competence of the Union-Parliament.

48th to 52nd B.P.S.C. (Pre) 2008

Ans. (b)

A bill presented in and passed by the Parliament becomes an Act after the assent of the President. (under Article 111)

83. The only instance when the President of India exercised his power of veto, is related to-

- (a) The Hindu Code Bill
- (b) The PEPSU Appropriation Bill
- (c) The Indian Post Office (Amendment) Bill
- (d) The Dowry Prohibition Bill

I.A.S. (Pre) 1993

Ans. (c)

President Dr. Rajendra Prasad applied an absolute Veto on the advice of the Council of Ministers over the PEPSU Appropriation Bill 1954, Whereas President Gyani Zail Singh exercised a the pocket veto in Indian Post Office (Amendment) Bill in 1986. Hence, pocket veto can be regarded as the veto power used by the President at his discretion. Whereas absolute veto is subject to the discretion of the union council of ministers. Therefore, option (c) is the correct answer.

84. Who among the following Presidents exercised a power which is 'Pocket veto' in Constitutional terminology?

- (a) Dr. Rajendra Prasad (b) V.V. Giri
- (c) Gyani Zail Singh (d) Dr. A.P.J. Abdul Kalam
- (e) None of the above

Chhattisgarh P.C.S. (Pre) 2015

Ans. (c)

A Pocket Veto is a legislative manoeuvre that allows a president to exercise that power over a Bill by taking no action (instead of affirmatively voting it or sending it back for reconsideration). To date 'Pocket Veto' has been exercised only once in India by the President Gyani Zail Singh in 1986 on the Indian Post Office (Amendment) Bill.

85. Under which Article of the Indian Constitution, the President of India enjoys the power to withhold his assent to any Bill passed by both the Houses of the Parliament?

- (a) Article 63 (b) Article 108
- (c) Article 109 (d) Article 111

U.P. Lower Sub. (Pre) 2004

U.P. P.C.S. (Pre) 2008

Ans. (d)

According to Article 111 of the Indian Constitution, when a Bill has been passed by both the Houses of Parliament, it shall be presented to the President and the President shall declare that either he assents to the Bill or that he withholds assent therefrom.

86. Who amongst the following has the power to withhold assent to a Bill, after it has been passed by the two Houses of Parliament?

- (a) The President
- (b) The Prime Minister
- (c) The Speaker of the Lok Sabha
- (d) The Chairman of the Rajya Sabha

U.P.P.C.S. (Mains) 2011

Ans. (a)

See the explanation of the above question.

87. Which of the following are the discretionary powers of the President?

- (i) Appointment of Council of Ministers
- (ii) To return a Bill with objections
- (iii) To withhold a Bill
- (iv) To pardon
- (v) To summon joint sessions
- (vi) To send message to Parliament
- (vii) Appointment of Judges

Code :

- (a) (i) (iii) (iv)
- (b) (ii) (v) (vii)
- (c) (iii) (vi) (vii)
- (d) (ii) (iv) (vi)
- (e) (ii) (iii) (vi)

Chhattisgarh P.C.S. (Pre) 2014

Ans. (e)

To return the Bill with objections and to withhold the Bill, are the discretionary powers of the President. While the power of appointment of Judges of the Supreme Court and High Courts and appointment of the Council of Ministers is the executive power, and to summon the joint session of Parliament is the legislative power of the President. Under Article 86(2), The President may send messages to either house of Parliament whether with respect to a bill then pending in parliament or otherwise, and a house to which any message is so sent shall, with all convenient dispatch, consider any matter required by the message to be taken into consideration.

88. On which matter, it is not essential for the President to take advice from the Council of Ministers?

- (a) Appointment of Ambassadors
- (b) To assent to Bills
- (c) To assent to Bills referred by Governors

- (d) To dissolve Lok Sabha
- (e) To assent on constitutional amendment bill

Chhattisgarh P.C.S. (Pre) 2015

Ans. (b)

According to Article 111 of the Indian Constitution, when a Bill has been passed by both the House of Parliament, it shall be presented to the President, who shall either give assent to Bill or withhold assent therefrom. It is not essential to take advice from the Council of Ministers when assent to a Bill is given by the President. While in other cases given in the options, it is essential to take advice from the Council of Ministers. Note : According to the Chhattisgarh Public Service Commission correct answer is option (b).

89. Which of this is the legislative power of the President according to constitution?

- (a) To summon the session of Parliament
- (b) To prorogue the session of Parliament
- (c) To adjourn the meeting of Parliament
- (d) To promulgate ordinance

Chhattisgarh P.C.S. (Pre) 2018

Ans. (d)

The President is an integral part of the parliament of India. He can promulgate ordinances when the parliament is not in session. Thus ordinances must be approved by the Parliament within six weeks of its reassembly. He can also withdraw an ordinance at any time. The power to promulgate an ordinance, is thus the legislative power of the President. The Power of the President to promulgate ordinances is mentioned in **Article 123** of the Constitution of India.

90. Which of the following is the discretionary powers of President?

- i. To appoint Prime Minister to the leader of majority party.
- ii. To summon the Parliament.
- iii. To return a bill to the Parliament with objections.
- iv. To appoint the members of Council of Ministers.
- v. To assent the bill referred by Governor.
- vi. To detain a bill.
- vii. To ask the Prime Minister for such information related to any advise.
- viii. To say the Council of Ministers for reconsideration on any advise.

- (a) i ii iv vii
- (b) ii v vi viii

- (c) i iii vi viii (d) ii v vii viii
(e) iii vi vii viii

Chattisgarh P.C.S. (Pre) 2017

Ans. (e)

Under the discretionary powers of the President, he is entitled to-

- (i) Return a bill to the Parliament with objections
To detain a bill
- (ii) Ask the Prime Minister for such information related to any matter
- (iii) To ask the Council of Ministers for reconsideration on any advise.

91. Under which Article of the Indian Constitution did the President give his assent to the Ordinance on electoral reforms when it was sent back to him by the Union Cabinet without making any changes (in the year 2002)?

- (a) Article 121 (b) Article 142
(c) Article 123 (d) Article 124

**I.A.S. (Pre) 2003
U.P.P.C.S. (Pre) 2015**

Ans. (c)

Article 123 of the Indian Constitution provides the power to the President to promulgate Ordinances during recess of Parliament, if at any time, except when both the Houses of Parliament are in session, the President is satisfied that circumstances exist which render it necessary for him to take immediate action, he may promulgate such Ordinance as required by the circumstances which appear to him. The Ordinance, thus issued, will have the same force as an Act of Parliament.

92. Which of the following statements is not correct regarding the issuance of Ordinance by the President?

- (a) It is linked to the legislative powers of Parliament.
- (b) Article 123 deals with it.
- (c) It ceases to exist after six weeks of Parliament Session.
- (d) President can never repeal it.

Uttarakhand P.C.S. (Pre) 2024

Ans. (d)

The President of India has been given the Power to promulgate Ordinances during recess of Parliament under Article 123 of the Indian Constitution. Some important points related to this are,

- The Ordinances promulgated by the President have the same force and affect as an Act of Parliament [under Article 123(2)].
- The Ordinance is required to get approved by the Parliament, within six weeks from the reassembly of Parliament, otherwise it cease to operate at the expiry of six-weeks from reassembly.
- The Ordinance may be withdrawn at any time by the President.

93. Under which of the following Articles of the Constitution, the President of India has been empowered to promulgate an ordinance?

- (a) Article-360 (b) Article-123
(c) Article-200 (d) Article-356

**U.P.P.C.S. (Mains) 2016
U.P. Lower Sub. (Mains) 2013**

Ans. (b)

See the explanation of the above question.

94. An ordinance promulgated by the President must be placed before the Parliament within what time frame after the start of its session?

- (a) 1 month (b) 6 weeks
(c) 8 weeks (d) 6 months

Jharkhand P.C.S. (Pre) 2013

Ans. (b)

According to Article 123(2), an Ordinance promulgated by the President must be laid before both the Houses of Parliament and shall cease to operate after the expiration of six weeks from the reassembly of Parliament.

95. Which among the following is/are appointed by the President of India?

- 1. Chairman of the Finance Commission
- 2. Vice-Chairman of the Planning Commission
- 3. Chief Ministers of the Union Territories

Select the correct answer by using the following code:

- (a) 1 is correct (b) 1 and 2 are correct
(c) 1 and 3 are correct (d) 2 and 3 are correct

**I.A.S. (Pre) 1994
U.P.P.C.S. (Mains) 2005**

Ans. (c)

According to Article 280(1), the Chairman of the Finance Commission is appointed by the President of India and according to Article 239AA(5), the Chief Minister of the Union Territories shall be appointed by the President and the other Ministers shall be appointed by the President on the advice of the Chief Minister and the Ministers shall hold office during the pleasure of the President. The Vice-Chairman of the Planning Commission was appointed by the Prime Minister. Now, the Planning Commission has been replaced by the 'NITI Aayog'.

96. Who among the following is appointed by the President:

- (a) Attorney General of India
- (b) Comptroller and Auditor General
- (c) Governor of State
- (d) All of the above

U.P.P.C.S. (Pre) 2002

Ans. (d)

Attorney General of India, Comptroller and Auditor General of India and Governor of State, all are appointed by the President in accordance with the Article 76, 148 and 155 respectively of the Indian Constitution.

97. Which one of the following is not appointed by the President of India:

- (a) Vice- President
- (b) Prime Minister
- (c) Governor
- (d) Chief Election Commissioner

U.P.P.C.S. (Pre) 1997

Ans. (a)

The Vice-President is not appointed by the President. Vice-President is elected in the manner provided in Article 66.

98. The Constitution authorizes the President to make provisions for discharge of duties of Governors in extraordinary circumstances under

- (a) Article 160
- (b) Article 162
- (c) Article 165
- (d) Article 310

U.P.P.C.S. (Mains) 2007

Ans. (a)

As per Article 160 of the Indian Constitution, the President may make such provisions as he thinks fit for the discharge of the duties of the Governor of a State in any contingency.

99. Indian Constitution doesn't empower the President of India with the right of

- (a) Appointment of Prime Minister
- (b) Appointment of Chief Minister in states
- (c) Being the Supreme Commander of Defence Forces
- (d) Executing emergency in any part of the country

38* B.P.S.C. (Pre) 1992

Ans. (b)

According to the Article 164(1), the Chief Minister is appointed by the Governor, not by the President of India.

100. Which Article of the Indian Constitution empowers the President to consult the Supreme Court?

- (a) Article 129
- (b) Article 132
- (c) Article 143
- (d) Article 32

U.P.P.C.S. (Mains) 2012

Ans. (c)

Article 143 of the Constitution empowers the President to consult the Supreme Court on the question of law or fact, but he is not bound to accept the advice given by the Supreme Court.

101. Which of the following is incorrect about the powers of the President of India?

- (a) The President should accept the advice of Supreme Court
- (b) Emergency powers
- (c) Power of extension of President's Rule in States
- (d) President can accept or reject the advice of the Supreme Court

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (a)

See the explanation of the above question.

102. According to the Constitution, which among the following is literally not a 'Power' of the President of India?

- (a) Promulgation of Ordinances
- (b) To consult the Supreme Court
- (c) To send messages to Houses of Parliament
- (d) To grant Pardon

R.A.S./R.T.S.(Pre) 2013

Ans. (c)

According to the Article 86(2), to send messages to the Parliament is a right of the President, not a power.

103. The President of India does not have the right to –

- (a) Give pardon
- (b) Remove a judge of Supreme Court
- (c) Declare emergency
- (d) Pass ordinances

41* B.P.S.C. (Pre) 1996

Ans. (b)

The President of India does not have the right to remove a judge of the Supreme Court. The provision regarding this is discussed in the Article 124(4) of the Constitution which says "A Judge of the Supreme Court shall not be removed from his office except by an order of the President passed after an address by each House of the Parliament supported by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of the House present and voting has been presented to the President in the same session for such removal on the ground of proved misbehaviour or incapacity".

104. Power of the President to grant pardons etc. is a :-

- (a) Legislative Power
- (b) Judicial Power
- (c) Executive Power
- (d) None of the above

U.P.P.C.S. (Mains) 2010

Ans. (b)

Under Article 72, the President has the power to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence. This comes under the judicial power of the President.

105. Which of the following doesn't consist in the power 'To Pardon' of President?

- | | |
|-------------------|-----------------|
| i. Pardon | ii. Commutation |
| iii. Remission | iv. Respite |
| v. Reprieve | vi. Detention |
| vii. Continuation | |
- (a) i (b) ii iii
(c) iv v (d) i ii iii iv v
(e) vi vii

Chhattisgarh P.C.S. (Pre) 2016

Ans. (e)

According to Article 72 of the Constitution, "the President shall have the power to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence. This also includes punishment or sentences by a Court Martial.

106. From which Article does the President of India derive his/her pardoning power?

- (a) Article 72 (b) Article 71
(c) Article 73 (d) Article 74

M.P.P.C.S. (Pre.) 2022

Ans. (a)

Article 72 of the Constitution empowers the President to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence, in all cases where the: 1. Punishment or sentence is for an offence against a Union Law; 2. Punishment or sentence is by a court martial (military court); and 3. The sentence is a sentence of death.

107. Which of the following types of authority are attributed to the President of the India?

1. Real and Popular
2. Titular (formal) and Dejure
3. Political and Nominal
4. Constitutional and Nominal

Select the correct answer from the code given below:

- (a) 1 and 3 (b) 2 and 3
(c) 1 and 4 (d) 2 and 4

U.P.P.C.S. (Mains) 2006

Ans. (d)

The President of India is attributed formal and Dejure authority. He enjoys constitutional and nominal authority.

108. According to the Constitution of India, it is the duty of the President of India to cause to be laid before the Parliament which of the following?

1. The Recommendations of the Union Finance Commission
2. The Report of the Public Accounts Committee

3. The Report of the Comptroller and Auditor General

4. The Report of the National Commission for Scheduled Castes

Select the correct answer using the code given below

- (a) Only 1 (b) 2 and 4
(c) 1, 3 and 4 (d) 1, 2, 3 and 4

I.A.S. (Pre) 2012

Ans. (c)

It is the duty of the President of India to cause to be laid down the recommendations made by the Union Finance Commission, Report of the Comptroller and Auditor General and the Report of the National Commission for Scheduled Castes before the Parliament under the Articles 281, 151(1) and 338(6) respectively, whereas Public Accounts Committee (PAC) is a committee of the selected Members of the Parliament, constituted by the Parliament of India. Its chairman is appointed by the Speaker of the Lok Sabha.

109. Which one of the following is not Constitutional Prerogative of the President of India?

- (a) Returning an ordinary Bill for reconsideration
(b) Returning a financial bill for reconsideration
(c) Dissolving the Lok Sabha
(d) Appointing the Prime Minister

U.P.P.C.S. (Mains) 2007

Ans. (b)

Under Article 111 of the Indian Constitution, the President cannot return Finance Bill for reconsideration. Finance Bill shall not be introduced or moved except on the recommendation of the President and a Bill making such provision shall not be introduced in the Council of States. The other 3 options are Constitutional Prerogative of the President of India.

110. Who has the Constitutional Power to declare a geographical area as a "Scheduled Area"?

- (a) Governor (b) Chief Minister
(c) Prime Minister (d) President

U.P.P.C.S. (Pre) 2006

Ans. (d)

The President of India has the Constitutional power to declare a geographical area as a "Scheduled Area". This provision is described in the "Fifth Schedule" of the Constitution. The President may, at any time, by order –
(i) Direct that the whole or any specified part of the Scheduled Area shall cease to be a Scheduled Area.
(ii) Increase the area of any Scheduled Area of a State after consultation with the Governor of that State.

- (iii) Alter, but only by way of rectification of boundaries.
 (iv) On any alteration of boundary of State or admission into Union or establishment of new State, declare any territory not previously included in any state to be, or to form part of a, Scheduled Area.

111. Who prepares the President's address to Parliament?

- (a) President himself
 (b) Speaker of Lok Sabha
 (c) Chairman of Rajya Sabha
 (d) Central Cabinet

M.P.P.C.S. (Pre) 1998

Ans. (d)

The Union Cabinet prepares the President's address to the Parliament because real executive power vests in the Union Cabinet.

112. The first President of India Rajendra Prasad belonged to which State ?

- (a) Bihar
 (b) Haryana
 (c) Delhi
 (d) Uttar Pradesh
 (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (a)

Dr. Rajendra Prasad was born in a remote village of Siwan district of Bihar, on 3rd December, 1884.

113. The First President of Independent India hailed from-

- (a) U.P. (b) Andhra Pradesh
 (c) Bihar (d) Tamil Nadu

41st B.P.S.C. (Pre) 2001

Ans. (c)

The First President of Independent India was Dr. Rajendra Prasad, who hailed from Bihar.

114. Which President of India completed two successive terms?

- (a) Dr. S. Radhakrishnan (b) Dr. Rajendra Prasad
 (c) Dr. Zakir Hussain (d) Both (a) and (b)

Uttarakhand P.C.S. (Pre) 2003

Ans. (b)

Dr. Rajendra Prasad served India as President for three terms (1950-1952), (1952-1957) and (1957-1962).

115. The fourth President of India was:

- (a) Sri V.V. Giri (b) Dr. S. Radhakrishnan
 (c) Dr. Zakir Hussain (d) Dr. Fakhruddin Ali Ahmad

U.P.P.C.S. (Pre) 1994

Ans. (a)

V.V. Giri was the 4th President of India (1969-1974), but on the basis of tenure, he was the 6th president of India. He became the President of India after Dr. Rajendra Prasad (3 times), Dr. S. Radhakrishnan and Zakir Hussain.

116. Who of the following was elected President of India unanimously?

- (a) S. Radhakrishnan (b) V. V. Giri
 (c) N. Sanjiva Reddy (d) Gyani Zail Singh

U.P.P.C.S. (Pre) 1998

Ans. (c)

Neelam Sanjiva Reddy was elected the President of India unanimously (unopposed). His tenure was from 1977 to 1982.

117. The single instance of the unanimous election of the President of India so far was the election of –

- (a) Dr. Rajendra Prasad (b) Dr. Radhakrishnan
 (c) Dr. Zakir Hussain (d) Neelam Sanjiva Reddy

U.P.P.C.S. (Mains) 2004

Ans. (d)

See the explanation of the above question.

118. Match List-I with List-II and select the correct answer using the code given below the list:

List-I (President)	List-II (Term)
A. Fakhruddin Ali Ahmed	1. 1969-1974
B. N. Sanjiva Reddy	2. 1974-1977
C. Dr. Zakir Hussain	3. 1977-1982
D. V.V. Giri	4. 1967-1969

Code :

	A	B	C	D
(a)	3	2	1	4
(b)	2	3	1	4
(c)	2	3	4	1
(d)	4	3	2	1

U.P. Lower Sub. (Mains) 2013

Ans. (c)

The matched List-I and List-II is as follows:

List-I	List-II
Fakhruddin Ali Ahmed	- 1974-1977
Neelam Sanjiva Reddy	- 1977-1982
Dr. Zakir Hussain	- 1967-1969
V.V. Giri	- 1969-1974

119. Who of the following before becoming the President of India did not hold the office of Vice-President?

- (a) Dr. S. Radhakrishnan (b) Dr. Zakir Hussain
 (c) Neelam Sanjiva Reddy (d) R. Venkatraman

U.P. Lower Sub. (Pre) 2002

Ans. (c)

In the given options, Neelam Sanjiva Reddy was the President who had not held the office of Vice-President before the appointment as a President.

120. Which one of the following did not serve as Vice President before assuming the office of the President of India ?

- (a) Neelam Sanjiva Reddy
- (b) R. Venkatraman
- (c) Dr. Shankar Dayal Sharma
- (d) Dr. Zakir Hussain

U.P.P.C.S. (Pre) 2022

Ans. (a)

See the explanation of the above question.

121. Which of the following Indian President also served as Speaker of Lok Sabha?

- (a) Fakhruddin Ali Ahmad
- (b) Dr. Shankar Dayal Sharma
- (c) Dr. Zakir Husain
- (d) Neelam Sanjiva Reddy

U.P.R.O./A.R.O. (Pre) 2021

Ans. (d)

Neelam Sanjiva Reddy as the sixth President of India, served as a two-time speaker of Lok Sabha from 17 March, 1967 to 19 July, 1969 and from 26 March, 1977 to 13 July, 1977.

122. Among the following who has been Speaker of Lok Sabha prior to his Election as President of India ?

- (a) Giani Zail Singh
- (b) V. V. Giri
- (c) Neelam Sanjeeva Reddy
- (d) A. P. J. Abdul Kalam

70th B.P.S.C. Pre-2024

Ans. (c)

The former President of India, Neelam Sanjeeva Reddy, served two terms (17.03.1967 to 19.07.1969 and 26.03.1977 to 13.07.1977) as the Speaker of the Lok Sabha. He was the President of India (elected unopposed) from 1977 to 1982.

123. Among the following Presidents of India, who is known as the Philosopher King or the Philosopher Ruler?

- (a) Dr. Radhakrishnan
- (b) Dr. Rajendra Prasad
- (c) Dr. Zakir Hussain
- (d) Dr. Abdul Kalam

U.P.P.C.S. (Mains) 2014

Ans. (a)

The Second President of India (1962-1967), Dr. Sarvepalli Radhakrishnan, is known as the Philosopher king or the Philosopher Ruler.

124. Who among the following Presidents of India was associated with Trade Union Movement?

- (a) V. V. Giri
- (b) N. Sanjiva Reddy
- (c) K.R. Narayanan
- (d) Zakir Hussain

U.P.P.C.S.(Pre) 2012

Ans. (a)

The fourth president of India, V.V. Giri (1969-1974) was associated with trade union movements. He was also the chairman of the All India Trade Union Congress for two terms.

125. Which President of India was called the 'Missile Man'?

- (a) Dr. Radhakrishnan
- (b) Dr. A.P.J. Abdul Kalam
- (c) Dr. Shankar Dayal Sharma
- (d) None of the above

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (b)

The 11th Indian President (as an individual) Dr. A.P.J. Abdul Kalam, whose term of office was from 2002 to 2007, was also known as 'the Missile Man' for his work on the development of Ballistic Missile and Satellite Launch Vehicle technology.

126. Who among the following Chief Justices of India also acted as the President of India?

- (a) Justice M. C. Mahajan
- (b) Justice M. Hidayatullah
- (c) Justice P.N. Bhagwati
- (d) Justice B.K. Mukherjee

U.P.P.C.S. (Mains) 2003

U.P.P.C.S. (Mains) 2004

Ans. (b)

Former Chief Justice of India M. Hidayatullah served as acting President of India from 20 July, 1969 to 24 August, 1969.

127. Choose the odd one-

- (a) Rajendra Prasad
- (b) Radhakrishnan
- (c) Zakir Husain
- (d) Jawaharlal Nehru

M.P.P.C.S. (Pre) 1991

Ans. (d)

Pandit Jawaharlal Nehru was the Prime Minister of India, while the rest of others were Presidents.

128. What is the sequence number of Ms. Pratibha Patil as the President of the Republic of India?

- (a) 10th
- (b) 11th
- (c) 12th
- (d) 13th

48th to 52nd B.P.S.C. (Pre) 2008

U.P. Lower Sub. (Pre) 2015

Ans. (c)